

Vijay Kumar v. State of U.P.

Allahabad High Court · Division Bench · 19 December 2017 · WRIT - C No. 61103 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ disputing the amount in an Executive Engineer's electricity notice is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for correction of the bill. The petition was dismissed on that alternative-remedy ground without examining the notice on merits.

FACTUAL SUMMARY

Vijay Kumar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh, disputing the correctness of the amount shown in a notice dated 13 November 2017 issued by the Executive Engineer of the Electricity Department. Standing counsel for the respondents submitted that the Supply Code itself provided a mechanism for bill correction. The Division Bench heard the matter on 19 December 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-alternative-remedy

HOLDING

A consumer who disputes the correctness of the amount indicated in an Executive Engineer's electricity notice has a statutory alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 for correction of the bill, and a writ petition raising that dispute will not be entertained. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ disputing the amount in an Executive Engineer's electricity notice is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy for correction of the bill. The petition was dismissed on that alternative-remedy ground without examining the notice on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMOUNT IN THE 13 NOVEMBER 2017 NOTICE

The Court did not examine the notice or bill on merits and dismissed solely because Clause 6.5 furnished an alternative remedy. ¶ 1